

CHAPTER 61

Prisons (Scotland) Act, 1952

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Section

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An Act to consolidate certain enactments relating to prisons and other institutions for offenders in Scotland and related matters with corrections and improvements made under the Consolidation of Enactments (Procedure) Act, 1949. [30th October 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Central Administration

General
control over
prisons in
Scotland.

1. All powers and jurisdiction in relation to prisons and prisoners which before the commencement of the Prisons (Scotland) Act, 1877, were exercisable by any other authority shall, subject to the provisions of this Act, be exercisable by the Secretary of State.

Appointment
of officers and
servants for
the purposes
of this Act.

2.—(1) There shall be employed for the purposes of this Act such inspectors and other officers and servants as the Secretary of State, with the sanction of the Treasury as to number, may appoint.

(2) There shall be paid out of moneys provided by Parliament to the inspectors and officers and servants appointed in pursuance of the last foregoing subsection such salaries as the Secretary of State may, with the consent of the Treasury determine.

3.—(1) The general superintendence of prisons shall be vested in the Secretary of State, who shall appoint the governors, matrons and other officers of prisons including medical officers, being medical practitioners duly registered under the Medical Acts. General superintendence of prisons.

(2) The Secretary of State shall appoint to each prison a chaplain being a minister or a licentiate of the Church of Scotland.

(3) The Secretary of State shall make contracts and do all other acts necessary for the maintenance of the prisons and prisoners therein.

(4) There shall be provided such office accommodation in connection with the general superintendence of prisons as the Secretary of State, with the consent of the Treasury, may determine.

4.—(1) Subject to any directions of the Secretary of State officers duly authorised by him shall visit and inspect all prisons and examine the state of the buildings, the conduct of officers, the treatment and conduct of the prisoners and all other matters concerning the management of prisons. General duties in relation to prisons

(2) The Secretary of State may, by himself or by any authorised officer, exercise in relation to any prison and the prisoners therein all powers and jurisdiction exercisable by the prison authority of a prison by virtue of any Act of Parliament or by any rules duly made thereunder.

5.—(1) The Secretary of State shall, at such time or times as he may think fit, cause a report to be prepared of the condition of the prisons and prisoners, and shall lay such report before Parliament. Report to Parliament.

(2) A report prepared under the last foregoing subsection shall state the various manufacturing processes carried on in each prison with such particulars as to the kinds and quantities of, and the commercial value of the labour on, the manufactures, and as to the number of prisoners employed and otherwise as may in the opinion of the Secretary of State be best calculated to afford information to Parliament.

6. The Secretary of State shall make a yearly return to Parliament of all punishments inflicted within each prison and the offences for which they were inflicted. Annual return of punishments.

7.—(1) Rules made under section thirty-five of this Act shall provide for the constitution, for prisons, of visiting committees appointed, at such times, in such manner, for such periods and by such county and town councils as may be prescribed by the rules. Visiting committees.

(2) Rules made as aforesaid shall secure that any such visiting committee shall include such number of women as may be

prescribed by the rules, and where a number less than the prescribed number is appointed by the said councils the Secretary of State may appoint such number of women as may be necessary to bring the number appointed by the councils up to the number prescribed.

(3) Rules made as aforesaid shall prescribe the functions of visiting committees, and shall among other things require the members to pay frequent visits to the prison and hear any complaints which may be made by the prisoners and report to the Secretary of State any matter which they consider it expedient to report; and any member of a visiting committee may at any time enter the prison and shall have free access to every part thereof and to every prisoner.

(4) Rules made as aforesaid may require the visiting committee appointed for any prison to consider periodically the character, conduct and prospects of each of the prisoners sentenced to corrective training or preventive detention, and to report to the Secretary of State on the advisability of his release on licence.

(5) The Secretary of State may pay—

- (a) to the members of any visiting committee appointed under or in pursuance of this section such allowances in respect of loss of earnings or travelling or subsistence or other expenses necessarily suffered or incurred in the performance of their duties; and
- (b) to the officers of any such committee such remuneration (whether by way of salary or fees) and such allowances in respect of travelling or subsistence expenses,

as the Secretary of State may with the consent of the Treasury determine.

Appointment
of prison
ministers.

8.—(1) Where in any prison the number of prisoners who belong to a religious denomination other than the Church of Scotland is such as in the opinion of the Secretary of State to require the appointment of a minister of that denomination, the Secretary of State may appoint such a minister to that prison.

(2) The Secretary of State may pay a minister appointed under the foregoing subsection such remuneration as he thinks reasonable.

(3) The Secretary of State may allow a minister of any denomination other than the Church of Scotland to visit prisoners of his denomination in a prison to which no minister of that denomination has been appointed under this section.

(4) No prisoner shall be visited against his will by such a minister as is mentioned in the last foregoing subsection; but every prisoner not belonging to the Church of Scotland shall be allowed, in accordance with the arrangements in force in the prison in which he is confined, to attend chapel or to be visited by the chaplain.

(5) The governor of a prison shall on the reception of each prisoner record the religious denomination to which the prisoner declares himself to belong, and shall give to any minister who under this section is appointed to the prison or permitted to visit prisoners therein a list of the prisoners who have declared themselves to belong to his denomination ; and the minister shall not be permitted to visit any other prisoners.

Confinement and Treatment of Prisoners

9. Prisoners shall be committed to such prison as may be appointed by rules under this Act, and a convicted criminal prisoner may be removed by the Secretary of State from any one prison to any other prison for the purpose of there undergoing the whole of any part of his sentence. Place of
confinement of
prisoners.

10.—(1) Rules under section thirty-five of this Act may provide in what manner an appellant within the meaning of the Criminal Appeal (Scotland) Act, 1926, when in custody, is to be taken to, kept in custody at, and brought back from, any place at which he is entitled to be present for the purposes of that Act, or any place to which the High Court of Justiciary or any judge thereof, may order him to be taken for the purposes of any proceedings of that Court. Removal of
prisoners for
judicial and
other purposes.

(2) The Secretary of State may—

- (a) if he is satisfied that the attendance at any place in Great Britain of a person detained in Scotland in a prison is desirable in the interests of justice or for the purposes of any public inquiry, direct him to be taken to that place ;
- (b) if he is satisfied that a person so detained requires medical or surgical treatment of any description, direct him to be taken to a hospital or other suitable place for the purpose of the treatment ;

and where any person is directed under this subsection to be taken to any place he shall, unless the Secretary of State otherwise directs, be kept in custody while being so taken, while at that place, and while being taken back to the prison in which he is required in accordance with law to be detained.

(3) The governor or any officer of a prison may execute any warrant issued by the High Court of Justiciary for the removal of a prisoner in that prison to any other prison for the purpose of trial before the said Court.

(4) The Secretary of State may make regulations as to the mode in which and the officers by whom warrants issued under the last foregoing subsection shall be executed.

Photographing and measuring of prisoners. **11.** The Secretary of State may make regulations as to the measuring and photographing of prisoners and such regulations may prescribe the time or times at which, and the manner and dress in which prisoners shall be measured and photographed, and the number of copies of the measurements and photographs of each prisoner which shall be made and the persons to whom they shall be sent.

Legal custody of prisoner. **12.** A person shall be deemed to be in legal custody

- (a) while he is confined in or being taken to or from any prison in which he may be lawfully confined ; or
- (b) while he is working or is, for any other reason, outside the prison in the custody or under the control of an officer of the prison ; or
- (c) while he is being taken to any place to which he is required or authorised by or under this Act to be taken ; or
- (d) while he is kept in custody in pursuance of such requirement or authorisation.

Power of constable to act outside area. **13.** A constable or other officer acting under the order of any sheriff, justice or magistrate having power to commit a person to prison may convey a prisoner to or from any prison to or from which he may be legally committed or removed notwithstanding that such prison may be beyond the area for which such constable is appointed.

Legalised police cells. **14.—(1)** The Secretary of State, on the application of the police authority of any county or burgh, may from time to time by rules under this Act declare that any police cells or other premises in the possession of the police authority shall be a legal prison for the detention of prisoners before, during or after trial for any period not exceeding thirty days. Any such police cells or other premises are hereinafter referred to as legalised police cells.

(2) Any person charged with or convicted of any crime or offence committed within any county or burgh who might have been lawfully confined in a prison situated therein may be lawfully confined in any legalised police cells situated in that county or burgh for such period as aforesaid.

(3) The maintenance of prisoners confined in any legalised police cells shall be deemed to be the maintenance of prisoners under this Act.

Provided that the police authority shall not be entitled to any payment for the use of the legalised police cells or for services rendered by any of their officers in connection with the detention or removal of the prisoners so confined.

(4) The police authority, notwithstanding anything in this section, shall at all times have a prior claim to the uninterrupted use of any legalised police cells in their area.

(5) For the purposes of this section the police authority of any county or burgh in which there are any legalised police cells and all persons in their employment shall be subject to the provisions of this Act and any rules made thereunder.

(6) It shall be the duty of the Secretary of State to make any arrangements required for the removal of any prisoners confined in legalised police cells in the County of Orkney or the County of Zetland.

(7) In this section the expression "police authority" means the council of a county or of a burgh which maintains a separate police force or in the case of a county or burgh included in the area for which there is an amalgamation scheme under the Police (Scotland) Act, 1946, in force, the joint police committee, and the expression county or burgh includes any such area.

15.—(1) A sheriff or justice of the peace may visit any prison within his jurisdiction or in which a prisoner is confined for any offence committed within his jurisdiction, and may examine the condition of the prison and of the prisoners therein and enter in the visitors book to be kept by the governor of the prison any observations on the condition of the prison or on any abuses therein. Right of sheriff or justice to visit prison.

(2) Nothing in the last foregoing subsection shall authorise a sheriff or justice of the peace to communicate with any prisoner except on the subject of his treatment in the prison or to visit any prisoner under sentence of death.

(3) It shall be the duty of the governor of a prison to draw the attention of the visiting committee at their next visit to any entry in the visitors book made in pursuance of this section.

Discharge of Prisoners

16.—(1) A prisoner who, but for this subsection would be discharged on a Sunday, shall be discharged on the immediately preceding day. Discharge of prisoners.

(2) A prisoner discharged from a prison situated outside the county or burgh in which he was convicted shall be entitled to be taken back to that county or burgh at the expense of the Secretary of State.

Allowances to
prisoner on
discharge.

17.—(1) When a prisoner is discharged from prison the Secretary of State may provide him with the means of returning to his home by causing his fare to be paid or in any other convenient manner.

(2) When a prisoner is discharged from prison the Secretary of State may, on the recommendation of the visiting committee or otherwise, order a sum of money not exceeding two pounds to be paid by the governor of the prison to the prisoner himself or to the treasurer of a Certified Prisoners Aid Society if the governor receives from the Society an undertaking in writing signed by the secretary thereof to apply the sum for the benefit of the prisoner.

After Care
Council and
Prisoners Aid
Societies.

18.—(1) It shall be lawful for the Secretary of State to appoint a Council to be known as the After Care Council and consisting of such number of members as the Secretary of State may determine, being persons interested in the moral and social welfare of offenders, and the Secretary of State may appoint a Chairman and a secretary of the Council and such other officers as he may deem necessary.

(2) The After Care Council—

(a) may be appointed or specified as the society for the purposes of any of the following provisions of this Act, namely, subsection (3) of section nineteen, subsection (3) of section twenty, section twenty-three and subsection (3) of section thirty-three; and

(b) may undertake such other duties in connection with the after care of offenders as the Secretary of State may require.

(3) The Secretary of State may pay—

(a) to the members of the After Care Council such allowances in respect of loss of earnings or travelling or subsistence or other expenses necessarily suffered or incurred in the performance of their duties; and

(b) to the officers of the said Council such remuneration (whether by way of salary or fees) and such allowances in respect of travelling or subsistence,

as the Secretary of State may with the approval of the Treasury determine.

(4) The Secretary of State, on the application of any one or more members of any society formed for the purpose of finding employment for discharged prisoners, and enabling them by loans and grants of money to live by honest labour, and after examining the rules of such society, and receiving such

evidence as he thinks fit as to the condition of such society, may issue a certificate that such society is approved for the purposes of this Act, and any society in respect of which such certificate as aforesaid has been granted and remains in force shall be deemed to be a "Certified Prisoners Aid Society".

(5) The Secretary of State may, on due cause shown, revoke or suspend any certificate granted by him under the last foregoing subsection.

Release on Licence and Temporary Discharge

19.—(1) A person sentenced to corrective training or preventive detention shall be detained in a prison for the term of his sentence subject to his release on licence in accordance with rules made under subsection (6) of section thirty-five of this Act or with the following provisions of this section, and while so detained shall be treated in such manner as may be prescribed by rules made under that section.

Release on
licence of
person
sentenced to
corrective
training or
preventive
detention.

(2) The Secretary of State may release on licence a person sentenced to corrective training or preventive detention after he has served such portion of his sentence as may be determined in accordance with rules made under the said section or at any time.

(3) A person shall, after his release on licence under the last foregoing subsection and until the expiration of his sentence, comply with such requirements as may be specified in the licence, including, if the Secretary of State thinks it expedient, a requirement that he shall be under the supervision of such society or person as may be so specified:

Provided that the Secretary of State may at any time modify or cancel any of the said requirements.

(4) If before the expiration of the sentence imposed on a person released on licence under subsection (2) of this section the Secretary of State is satisfied that that person has failed to comply with any requirement for the time being specified in the licence, the Secretary of State may by order recall him to a prison; and thereupon such person shall be liable to be detained in the prison until the expiration of his sentence, and, if at large, shall be deemed to be unlawfully at large.

(5) The Secretary of State may release on licence a person detained in a prison under the last foregoing subsection at any time before the expiration of his sentence; and subsections (3) and (4) of this section shall apply in the case of a person released under this subsection as they apply in the case of a person released under subsection (2) thereof.

(6) If any person while released on licence, or after he is recalled to a prison, as aforesaid, is sentenced by a court in any part of Great Britain to corrective training or preventive detention, the sentence by virtue of which he is on licence or has been recalled shall cease to have effect.

Remission for
good conduct
and release on
licence of
young
prisoners.

20.—(1) Rules made under section thirty-five of this Act may make provision whereby, in such circumstances as may be prescribed by the rules, a person serving a sentence of imprisonment for such a term as may be so prescribed, may be granted remission of such part of that sentence as may be so prescribed on the ground of his industry and good conduct; and on the discharge of a person from a prison in pursuance of any such remission as aforesaid his sentence shall expire.

(2) If it appears to the Secretary of State that a person serving a sentence of imprisonment was under the age of twenty-one years at the commencement of his sentence, he may direct that instead of being granted remission of his sentence under the rules such person shall, at any time on or after the day on which he could have been discharged if the remission had been granted, be released on licence under the following provisions of this section.

(3) A person released on licence under this section shall until the expiration of his sentence be under the supervision of such society or person as may be specified in the licence and shall comply with such other requirements as may be so specified:

Provided that the Secretary of State may at any time modify or cancel any such requirements.

(4) If before the expiration of the sentence imposed on a person released as aforesaid the Secretary of State is satisfied that that person has failed to comply with any requirement for the time being specified in the licence the Secretary of State may by order recall him to a prison; and thereupon such person shall be liable to be detained in prison until the expiration of his sentence and, if at large, shall be deemed to be unlawfully at large.

(5) The Secretary of State may release on licence a person detained in a prison under the last foregoing subsection at any time before the expiration of his sentence; and subsections (3) and (4) of this section shall apply in the case of a person released under this subsection as they apply in the case of a person released under subsection (2) thereof.

(6) Where the unexpired part of the sentence of a person released under subsection (2) of this section is less than six

months, subsections (3) to (5) of this section shall apply to him subject to the following modifications—

- (a) the period for which he is under supervision under subsection (3), and is liable to recall under subsection (4), shall be a period of six months from the date of his release under the said subsection (2);
- (b) if he is recalled under subsection (4), the period for which he may be detained thereunder shall be whichever is the shorter of the following, that is to say—

- (i) the remainder of the said period of six months ;
- or

- (ii) the part of his sentence which was unexpired on the date of his release under the said subsection (2) reduced by any time during which he has been so detained since that date ;

and he may be released on licence under subsection (5) at any time before the expiration of that period.

(7) For the purposes of this section consecutive terms of imprisonment shall be treated as one term.

21.—(1) The Secretary of State may at any time if he thinks fit release on licence a person serving a term of imprisonment for life subject to compliance with such conditions, if any, as the Secretary of State may from time to time determine.

Release on licence of persons serving imprisonment for life.

(2) The Secretary of State may at any time by order recall to prison a person released on licence under this section, but without prejudice to the power of the Secretary of State to release him on licence again ; and where any person is so recalled his licence shall cease to have effect and he shall, if at large, be deemed to be unlawfully at large.

22.—(1) If the Secretary of State is satisfied that by reason of the condition of a prisoner's health it is undesirable to detain him in prison, but that, such condition of health being due in whole or in part to the prisoner's own conduct in prison, it is desirable that his release should be temporary and conditional only, the Secretary of State may, if he thinks fit, having regard to all the circumstances of the case, by order authorise the temporary discharge of the prisoner for such period and subject to such conditions as may be stated in the order.

Power of Secretary of State to discharge prisoners temporarily on account of their health.

(2) Where an order of temporary discharge is made in the case of a prisoner not under sentence, the order shall contain conditions requiring the attendance of the prisoner at any further proceedings on his case at which his presence may be required.

(3) Any prisoner discharged under this section shall comply with any conditions stated in the order of temporary discharge,

and shall return to prison at the expiration of the period stated in the order, or of such extended period as may be fixed by any subsequent order of the Secretary of State, and, if the prisoner fails so to comply or return, he may be arrested without warrant and taken back to prison.

(4) Where a prisoner under sentence is discharged in pursuance of an order of temporary discharge, the currency of the sentence shall be suspended from the day on which he is discharged from prison under the order to the day on which he is received back into prison, so that the former day shall be reckoned and the latter shall not be reckoned as part of the sentence

(5) Nothing in this section shall affect the duties of the medical officer of a prison in respect of a prisoner whom the Secretary of State does not think fit to discharge under this section.

Notification of
address by
discharged
prisoners.

23.—(1) Where an order has been made under section twenty-two of the Criminal Justice (Scotland) Act, 1949 (which, as amended by this Act, requires a court in certain circumstances to order that a person shall for a period of twelve months be subject to the provisions of this section)—

- (a) the offender shall, on his next discharge from prison and thereafter from time to time, inform the appointed society of his address in accordance with such instructions as may be given to him by or on behalf of the society ;
- (b) if the offender fails to comply to the satisfaction of the appointed society with the aforesaid requirement to notify his address on his discharge, the society shall, and if he subsequently fails to keep the society informed of his address to their satisfaction, the society may, give notice of the failure to the Secretary of State, and shall, if reasonably possible, inform the offender that the notice has been given ;

and as from the date on which any such notice has been given as aforesaid, the provisions of the First Schedule to this Act shall apply to the offender.

(2) It shall be the duty of the governor of a prison on the discharge from prison of an offender against whom an order has been made under the said section twenty-two to serve upon him a notice stating the effect of the order.

(3) The Secretary of State may by a direction in writing relieve an offender against whom an order has been made under the said section twenty-two of any requirement of this section or of the First Schedule to this Act ; and any such direction may be

made conditional upon the observance of such requirements as may be specified therein ; and the Secretary of State may, if he is satisfied that any requirement so imposed has been contravened, cancel the direction.

(4) In this section the expression " the appointed society " means a society appointed for the purposes of this section by the Secretary of State who may appoint a society either to act in all cases or to act in such cases or classes of cases as he may direct.

Duties of Governor of Prison, etc.

24. The governor of a prison shall—

Duties of
governor of
prison.

- (a) as far as practicable, visit the whole of the prison and see every prisoner at least once in every twenty-four hours, and, in default of such daily visits, state in his journal the extent of and the reason for such default ;
- (b) as soon as practicable draw the attention of the medical officer to any prisoner whose state of mind or body appears to require attention and carry into effect the written directions of the medical officer as to alterations in the discipline or treatment of such prisoner ;
- (c) notify the medical officer without delay of the illness of any prisoner, and deliver to him daily a list of prisoners complaining of illness ;
- (d) deliver to the chaplain and to the medical officer lists of prisoners confined to their cells ; and
- (e) keep records regarding the commitment to and liberation from the prison of prisoners committed thereto in pursuance of criminal warrants and when so required exhibit such records to the sheriff within whose jurisdiction the prison is situated.

25.—(1) The governor of a prison shall, in the event of the death of a prisoner, give immediate notice thereof to the procurator fiscal within whose area the prison is situated, and to the visiting committee, and, where practicable, to the nearest relative of the prisoner.

Notification
of and inquiry
into death of
prisoner.

(2) The procurator fiscal shall hold a public inquiry before the sheriff into the death of any prisoner in a prison within his area, and where practicable sufficient time between the death and the holding of the inquiry shall intervene to allow the attendance of the next of kin of the prisoner.

Return of
warrants for
or sentences of
imprisonment.

26. Where a warrant for imprisonment is granted or a sentence of imprisonment is pronounced by any court a return thereof shall be made by the clerk of the court to the Secretary of State at such time and in such form as he may determine.

Legal Estate in and Discontinuance of Prison, etc.

Legal estate
in prison.

27. The legal estate in every prison and in all heritable or moveable property belonging to a prison shall be vested in the Secretary of State and may be disposed of in such manner as the Secretary of State, with the consent of the Treasury, may determine.

Discontinuance
of prison.

28.—(1) The Secretary of State may by order discontinue any prison, and any prison so discontinued shall be sold or otherwise disposed of as the Secretary of State, with the consent of the Treasury, may direct.

(2) For the purposes of this section a prison shall not be deemed to be discontinued by reason only of its appropriation for use as a remand centre, detention centre or Borstal institution.

Acquisition
of land for
prisons.

29.—(1) The Secretary of State may purchase by agreement, or compulsorily, any land required for the alteration, enlargement or rebuilding of a prison or for building or establishing a new prison or for any other purpose connected with the management of a prison (including the provision of accommodation for officers or servants employed therein).

(2) For the purpose of the compulsory purchase of land by the Secretary of State under the last foregoing subsection, the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947, shall apply as if paragraph (d) of subsection (1) of section one thereof (which refers to the compulsory purchase of land by the Secretary of State under the National Health Service (Scotland) Act, 1947) included a reference to the last foregoing subsection.

(3) In relation to the purchase of land by agreement under this section, the Lands Clauses Acts (except the provisions relating to the purchase of land otherwise than by agreement and the provisions relating to access to the special Act, and except sections one hundred and twenty to one hundred and twenty-five of the Lands Clauses Consolidation (Scotland) Act, 1845) shall be incorporated with this section, and in construing those Acts as so incorporated this section shall be deemed to be the special Act and references to the promoters of the undertaking shall be construed as references to the Secretary of State.

Offences

30.—(1) Any person who brings, or introduces or attempts by any means to bring or introduce, into a prison any letter, tobacco, spirits or other article not allowed by rules made under section thirty-five of this Act shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a fine not exceeding five pounds or to imprisonment for any period not exceeding thirty days.

Unlawful
introduction of
tobacco, etc.,
into prison.

(2) For the purposes of the last foregoing subsection a person shall be deemed to introduce an article into a prison if he conveys it to a prisoner outside the prison or places it anywhere outside the prison with intent that it shall come into the possession of a prisoner.

(3) It shall be lawful for any officer of the prison to apprehend an offender against this section.

Remand Centres, Detention Centres and Borstal Institutions

31.—(1) The Secretary of State may provide—

Remand
centres,
detention
centres and
Borstal
institutions.

(a) remand centres, that is to say places for the detention of persons not less than fourteen but under twenty-one years of age who are remanded or committed in custody for trial or sentence;

(b) detention centres, that is to say places in which persons not less than fourteen but under twenty-one years of age who are ordered to be detained in such centres under the Criminal Justice (Scotland) Act, 1949, may be kept for short periods under discipline suitable to persons of their age and description; and

(c) Borstal institutions, that is to say places in which offenders who on the date of their conviction were not less than sixteen but under twenty-one years of age may be detained and given such training and instruction as will conduce to their reformation and the prevention of crime.

(2) The Secretary of State shall provide in remand centres facilities for the observation and examination of any person detained therein on whose physical or mental condition a medical report may be desirable for the assistance of the court in determining the most suitable method of dealing with his case.

(3) The Secretary of State shall appoint for every remand centre, detention centre and Borstal institution a visiting committee of which not less than two members shall be burgh

magistrates or justices of the peace and not less than such number of members as may be prescribed by the rules shall be women.

(4) The following provisions, that is to say—

- (a) section six of the Prevention of Crimes Act, 1871 (which relates to the registration of prisoners);
- (b) subsections (3) and (5) of section seven, subsection (2) of section ten, section eleven and section twenty-nine of this Act; and
- (c) subject as hereinafter provided, the other provisions of this Act preceding this section;

shall apply to remand centres, detention centres and Borstal institutions, to persons detained therein and to visiting committees appointed therefor under subsection (3) of this section in like manner as the said provisions apply to prisons, prisoners and visiting committees appointed for prisons under subsection (1) of the said section seven:

Provided that—

- (i) subsections (1) and (2) of section seven, section nineteen, subsections (2) to (6) of section twenty and sections twenty-one to twenty-three of this Act shall not so apply;
- (ii) subsections (3) and (4) of section ten of this Act shall not apply to detention centres or Borstal institutions;
- (iii) subsections (1) and (7) of section twenty of this Act shall not apply to remand centres or Borstal institutions;
- (iv) subsection (4) of section seven of this Act shall not apply to remand centres or detention centres and shall apply to persons detained in Borstal institutions as it applies to persons sentenced to corrective training or preventive detention, but the report required by that subsection as so applied shall be made on the advisability of their release under supervision;
- (v) the provisions specified in paragraph (c) of this subsection, other than those mentioned in paragraphs (i) to (iv) of this proviso, shall apply as aforesaid subject to such adaptations and modifications as may be made by rules of the Secretary of State.

(5) References in the foregoing provisions of this Act to imprisonment shall, so far as those provisions apply to institutions provided under this section, be construed as including detention in those institutions.

Transfers from
prison to
Borstal
institution and
vice versa.

32.—(1) If the Secretary of State is satisfied that a person serving a sentence of imprisonment is under twenty-one years of age and might with advantage be detained in a Borstal institution, he may, after consultation where practicable with

the judge by whom or the presiding chairman of the court by which the sentence was passed, transfer such person to a Borstal institution; and the provisions of the next following section shall thereupon apply to him as if he had on the date of the transfer been sentenced to Borstal training:

Provided that if on that date the unexpired term of his sentence is less than three years those provisions shall apply to him as if he had been sentenced to Borstal training three years before the expiration of that term.

(2) If a person detained in a Borstal institution is reported to the Secretary of State by the visiting committee to be incorrigible, or to be exercising a bad influence on the other inmates of the institution, the Secretary of State may present an application to the sheriff within whose jurisdiction the institution is situate for commutation to imprisonment of the unexpired part of the term for which the said person is then liable to be detained in a Borstal institution and on any such application the sheriff may commute the said unexpired part to such a term of imprisonment, not exceeding the said unexpired part, as he may think fit; and for the purpose of this Act the said person shall be treated as if he had been sentenced to imprisonment for that term.

33.—(1) A person sentenced to Borstal training shall be detained in a Borstal institution, and after his release therefrom be subject to supervision in accordance with the following provisions of this section; subject, however, to the power of the sheriff under subsection (2) of the last foregoing section to commute, on the application of the Secretary of State, the unexpired part of the term for which a person is liable to be so detained to a term of imprisonment.

Release of
person
sentenced to
Borstal
training.

(2) A person sentenced to Borstal training shall be detained in a Borstal institution for such period, not extending beyond three years after the date of his sentence, as the Secretary of State may determine, and shall then be released.

(3) A person shall, after his release from a Borstal institution and until the expiration of a period of three years from the date of his sentence or the expiration of one year from the date of his release, whichever is the earlier, be under the supervision of such society or person as may be specified in a notice to be given to him by the Secretary of State on his release, and shall, while under that supervision, comply with such requirements as may be so specified:

Provided that the Secretary of State may at any time modify or cancel any of the said requirements or order that a person who is under supervision as aforesaid shall cease to be under supervision.

(4) If the Secretary of State is satisfied that a person who is under supervision after his release from a Borstal institution under subsection (2) of this section has failed to comply with any requirement for the time being specified in the notice given to him under subsection (3) of this section, the Secretary of State may by order recall him to a Borstal institution; and thereupon he shall be liable to be detained in the Borstal institution until the expiration of one year from the date of his being taken into custody under the order and, if at large, shall be deemed to be unlawfully at large:

Provided that—

- (a) any such order shall, at the expiration of a period of three years from the date of the sentence, cease to have effect unless the person to whom it relates is then in custody thereunder; and
- (b) the Secretary of State may at any time release a person who is detained in a Borstal institution under this subsection; and the foregoing provisions of this section shall apply in the case of a person so released as they apply in the case of a person released under subsection (2) thereof.

(5) If any person while under supervision, or after his recall to a Borstal institution, as aforesaid, is sentenced by a court in any part of Great Britain to corrective training or Borstal training, his original sentence of Borstal training shall cease to have effect.

(6) The Secretary of State in exercising his functions under this section shall consider any report made to him by a visiting committee on the advisability of releasing a person from a Borstal institution.

Temporary
detention of
persons liable
to detention
in a Borstal
institution.

34. A person who is required to be taken to a Borstal institution may, until arrangements can be made for taking him there, be temporarily detained elsewhere.

Rules for the Management of Prisons and other Institutions

Rules for the
management
of prisons
and other
institutions.

35.—(1) The Secretary of State may make rules for the regulation and management of prisons, remand centres, detention centres and Borstal institutions respectively, and for the classification, treatment, employment, discipline and control of persons required to be detained therein.

(2) Rules made under this section shall make provision for ensuring that a person who is charged with any offence under the rules shall be given a proper opportunity of presenting his case.

(3) Rules made under this section may provide for the training of particular classes of persons and their allocation for that purpose to any prison or other institution in which they may lawfully be detained.

(4) Rules made under this section may provide for the appointment of a convenient prison or prisons—

- (a) in which prisoners are to be confined before and during trial, or at either of such times ;
- (b) in which particular classes of prisoners may be confined ;
- (c) in which civil prisoners may be confined during the period of their imprisonment.

(5) Rules made under this section shall provide for the special treatment of the following persons whilst required to be detained in a prison, that is to say—

- (a) any person serving a sentence of corrective training or preventive detention
- (b) any person serving a sentence on conviction of sedition ;
- (c) any appellant within the meaning of the Criminal Appeal (Scotland) Act, 1926, pending the determination of his appeal ;
- (d) any other person detained in a prison, not being a person serving a sentence imposed on conviction of an offence.

(6) Rules made under this section may provide for the temporary release of persons serving a sentence of imprisonment, corrective training, preventive detention, or Borstal training.

Miscellaneous

36.—(1) The Secretary of State may, on the application of a person serving a sentence of imprisonment, corrective training, preventive detention or Borstal training, order his removal to a prison or Borstal institution in England ; and any person so removed may be detained, released, recalled and otherwise dealt with as if he had been sentenced by a court in England.

Removal of prisoners, etc., to and from England and from the Isle of Man or Channel Islands.

(2) Any person sentenced, under the law for the time being in force, by any court in the Isle of Man or the Channel Islands to penal servitude, imprisonment, corrective training, preventive detention, detention in a Borstal institution, Borstal training or detention in a detention centre may, if the Secretary of State so orders, be removed to a prison, Borstal institution or detention centre, as the case may be, in Scotland.

(3) Any person ordered to be removed under the last foregoing subsection, and any person sentenced by a court in England

who, under any enactment extending to England, is ordered to be removed to a prison or Borstal institution in Scotland, may be detained, released, recalled and otherwise dealt with as if his sentence had been passed by a court in Scotland and as if his sentence were one which could be imposed by such a court:

Provided that—

- (a) where a person so removed was undergoing or liable to undergo a term of penal servitude, he shall be treated as if that term were a term of imprisonment;
- (b) where a person so removed was sentenced to detention in a Borstal institution he shall be treated as if he had been sentenced to Borstal training.

(4) Any person removed under this section from the Isle of Man or the Channel Islands to a prison or Borstal institution in Scotland may, on his release under section nineteen, section twenty or section thirty-three of this Act, as the case may be, be placed under supervision in the Isle of Man or the Channel Islands, as the case may be, and those sections shall apply to him therein; and if any person so released is recalled under the provisions aforesaid, he may, if in the Isle of Man or the Channel Islands, be arrested without warrant and removed to Scotland for the purpose of being taken to a prison or Borstal institution as the case may be.

(5) The provisions of the Second Schedule to this Act shall have effect in relation to persons for the time being in England who have been discharged from prisons and other institutions in Scotland (including persons who, before being so discharged, had been removed to such institutions under any enactment extending to England).

(6) For the purposes of this section, a person sentenced to death by a court in England or in the Isle of Man or the Channel Islands who has been pardoned by Her Majesty on condition that he serves a term of penal servitude or imprisonment shall be deemed to have been sentenced to penal servitude or imprisonment by that court.

Persons
unlawfully
at large.

37.—(1) Any person who, having been sentenced to imprisonment, corrective training, preventive detention or Borstal training, or ordered to be detained in a detention centre, or having been committed to a prison or remand centre, is unlawfully at large, may be arrested by a constable or prison officer without warrant in any part of Great Britain and taken to the place in which he is required in accordance with law to be detained.

(2) Where any person sentenced to imprisonment, corrective training, preventive detention or Borstal training, or ordered to be detained in a remand home or detention centre, is, at any

time during the period for which he is liable to be detained in pursuance of the sentence or order, absent, otherwise than with lawful authority, from the prison, Borstal institution, remand home or detention centre, as the case may be, then, unless the Secretary of State otherwise directs, no account shall be taken, in calculating the period for which he is liable to be so detained, of any time during which he is so absent:

Provided that this subsection shall not apply to any period during which any such person as aforesaid is detained in pursuance of an order of any court in a prison, remand centre, Borstal institution, remand home or detention centre.

(3) For the purposes of this section, a person who, after being temporarily released in pursuance of rules made under subsection (6) of section thirty-five of this Act, is at large at any time during the period for which he is liable to be detained in pursuance of his sentence shall be deemed to be unlawfully at large if the period for which he was temporarily released has expired or if an order recalling him has been made by the Secretary of State in pursuance of the rules.

38. Subsection (2) of section ten of this Act shall apply to persons detained in remand homes as it applies to persons detained in prison.

Supplementary

39. All expenses incurred in the maintenance of prisons and in the maintenance of prisoners and all other expenses of the Secretary of State incurred under this Act shall be defrayed out of moneys provided by Parliament.

Expenses to be paid out of moneys provided by Parliament.

40.—(1) Any power of the Secretary of State to make rules or regulations under this Act, and the power of the Secretary of State to make an order under section twenty-eight of this Act, shall be exercisable by statutory instrument.

Exercise of power to make rules, etc.

(2) Any statutory instrument containing regulations made under section eleven or an order made under section twenty-eight of this Act and the draft of any statutory instrument containing rules made under section thirty-five of this Act shall be laid before Parliament.

41. Nothing in this Act shall affect the powers or duties of the magistrates of a burgh with regard to prisoners under sentence of death and confined in a prison within such burgh or their jurisdiction or control over such prison and the officers thereof so far as necessary for the purpose of carrying into effect the sentence of death.

Prisoners under sentence of death.

Interpretation. 42.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them:—

“Criminal prisoner” means a person committed to prison in respect of a charge or conviction of a criminal offence and “civil prisoner” includes any other prisoner;

“Prison” includes any prison other than a naval, military or air force prison;

“Prisoner” means a person committed for trial, safe custody, punishment or otherwise;

“Remand home” means premises established or used by a county or town council under the provisions of section eighty-one of the Children and Young Persons (Scotland) Act, 1937.

(2) For the purpose of this Act the maintenance of a prisoner shall include all necessary expenses incurred in respect of the prisoner for food, clothing, custody and removal from one place to another from the period from the date of the order for his committal to prison until his death or discharge from prison.

(3) References in this Act to any enactment shall be construed as references to that enactment as amended by any other enactment.

**Consequential
amendments,
repeals and
savings.**

43.—(1) The enactments mentioned in the Third Schedule to this Act shall have effect subject to the amendments specified therein, being amendments consequential on the provisions of this Act.

(2) The enactments specified in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(3) Nothing in this repeal shall affect any rule, order, regulation or declaration made, direction or certificate given or thing done under any enactment repealed by this Act and every such rule, order, regulation, direction, certificate or thing shall, if in force at the commencement of this Act, continue in force and be deemed to have been made, given or done under the corresponding provision of this Act.

(4) Any document referring to any Act or enactment repealed by this Act shall be construed as referring to this Act or to the corresponding enactment in this Act.

(5) The mention of particular matters in this section shall not be taken to affect the general application to this Act of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals).

44.—(1) This Act may be cited as the Prisons (Scotland) Act, 1952. Short title,
commence-
ment and
extent.

(2) This Act shall come into operation on the first day of January, nineteen hundred and fifty-three.

(3) Save as otherwise expressly provided, and except in so far as relates to the repeal of sections sixty-one and sixty-two of, and the Ninth Schedule to, the Criminal Justice (Scotland) Act, 1949, this Act shall extend to Scotland only.

SCHEDULES

FIRST SCHEDULE

REGISTRATION OF ADDRESS AND REPORTING AT POLICE STATIONS BY Section 23 DISCHARGED PRISONERS

1.—(1) Any person to whom this Schedule applies shall—

(a) register at an appointed police station in any police area in which he is from time to time residing the address of his residence;

(b) report once in each month, on such day as may be directed by or on behalf of the chief officer of police, at the police station at which his address for the time being is registered.

(2) Where any person to whom this Schedule applies changes his residence he shall, on registering his new address under this paragraph, state the address which was last registered by him thereunder.

(3) Any such registration and report as aforesaid shall be effected in person before the officer in charge of the police station:

Provided that any such report may, if permission in that behalf is granted by or on behalf of the chief officer of police, be made in writing.

2.—(1) If any person fails without reasonable excuse to comply with any of the requirements of the foregoing paragraph, he shall be guilty of an offence and liable on summary conviction thereof to imprisonment for a term not exceeding six months:

Provided that—

(a) in proceedings for a failure to register an address it shall be a defence for the accused to prove either that—

(i) being on a journey to a particular destination he remained no longer in the place in which he failed to register his address than was reasonably necessary for the purposes of that journey; or

(ii) his absence from his registered address was temporary and that he kept the officer in charge of the police station at which that address was registered sufficiently informed of his whereabouts; and

1st SCH.
—cont.

(b) in proceedings for a failure to report it shall be a defence for the accused to prove that, being temporarily absent from his registered address on the day on which he was directed to report, he personally presented himself and reported on that day at a police station within the police area in which he then was and stated his registered address.

(2) A person to whom this Schedule applies who is reasonably suspected of having committed an offence under this paragraph may be arrested without warrant by any constable.

(3) A person charged with an offence under this paragraph may be tried in the place in which he was arrested or in the place in which the offence is alleged to have been committed or, if the offence consists of a failure to report in writing to a police station, in the place in which the police station is situated.

3.—(1) Any appointment, direction or permission purporting to be signed by or on behalf of a chief officer of police and to have been made or given for the purposes of this Schedule shall, in proceedings under the last foregoing paragraph of this Schedule, be sufficient evidence that the appointment, direction or permission thereby made or given was duly made or given by or on behalf of the chief officer of police.

(2) A certificate purporting to be signed by an officer in charge of a police station and certifying that it appears from the records kept at that police station that a person has failed to register an address or make a report or has registered a particular address at that police station shall, in any such proceedings as aforesaid, be sufficient evidence of the facts so certified.

(3) A certificate purporting to be signed by or on behalf of the Secretary of State and certifying that he has received a notice given pursuant to paragraph (b) of subsection (1) of section twenty-three of this Act to the effect that a person has failed to comply with any requirement under that subsection shall, in any such proceedings as aforesaid, be sufficient evidence of the notice having been duly given and of the contents of the notice.

4.—(1) For the purposes of this Schedule, a person shall be deemed to reside at any house or other place of whatever description at which he spends a night.

(2) In this Schedule the following expressions have the meaning hereby respectively assigned to them, that is to say:—

“Appointed police station” means a police station appointed for the purposes of this Schedule by the chief officer of police of the police area in which the police station is situated;

“Chief officer of police” and “police area” have the same meaning respectively as in section thirty of the Police Pensions Act, 1921;

“Registered address”, in relation to any person, means the address which is for the time being the address last registered by him in accordance with this Schedule.

5. It shall be the duty of a chief officer of police to appoint a sufficient number of police stations in his area for the purposes of this Schedule.

SECOND SCHEDULE

PROVISIONS RELATING TO PERSONS IN ENGLAND AFTER DISCHARGE FROM Section 36.
PRISONS, ETC., IN SCOTLAND

1. Where any person serving a term of imprisonment for life has been released on licence under subsection (1) of section twenty-one of this Act, he may be recalled under subsection (2) of that section notwithstanding that he is for the time being in England; and in relation to any such persons, while in England, the said subsection (2) shall extend to England accordingly.

2. Where any person sentenced to Borstal training by a court in Scotland, or who is required by virtue of any enactment to be treated as if he had been so sentenced, is released from a Borstal institution, he shall continue to be under supervision, and may be recalled, in accordance with the provisions of section thirty-three of this Act, notwithstanding that he is for the time being in England and in relation to any such person, while in England, the provisions of subsections (3) to (6) of that section shall extend to England accordingly.

3. Where any person sentenced by a court in Scotland to corrective training or preventive detention, or required by virtue of section thirty-six of this Act to be treated as if he had been so sentenced, is released on licence under subsection (2) of section nineteen of this Act, any requirements of the licence shall continue in force, and he may be recalled under the said section nineteen, notwithstanding that he is for the time being in England; and in relation to any such person, while in England, the provisions of subsections (3) to (6) of that section shall extend to England accordingly.

4. Where any person serving a sentence of imprisonment is released on licence under subsection (2) of section twenty of this Act, he shall continue to be under supervision, and may be recalled, in accordance with the provisions of that section, notwithstanding that he is for the time being in England; and in relation to any such person, while in England, the provisions of subsections (3) to (6) of that section shall extend to England accordingly.

5. Where, under section twenty-two of the Criminal Justice (Scotland) Act, 1949, any person convicted of an offence is ordered to be subject to the provisions of section twenty-three of this Act, he shall remain so subject notwithstanding that he is for the time being in England; and in relation to any such person, while in England, the said section twenty-three and the First Schedule to this Act shall extend to England accordingly.

THIRD SCHEDULE

CONSEQUENTIAL AMENDMENTS

Section 43.

*Act to be Amended**Amendment*

The Mental Deficiency
and Lunacy (Scotland)
Act, 1913.
3 & 4 Geo. 5. c. 38.

In each of the following enactments, that is to say, in subsection (1) of section three, section five and subsection (2) of section thirty-four for the words "in a prison or other institution to which the Prisons (Scotland) Acts, 1860 to 1926, apply" there shall be substituted the words "in a prison, remand centre, detention centre or Borstal institution".

3RD SCH.
—cont.*Act to be Amended**Amendment*The Firearms Act, 1937.
1 Edw. 8 & 1 Geo. 6.
c. 12.

In section twenty-one, in subsection (2) for paragraph (a) there shall be substituted the following paragraph:—

“(a) is the holder of a licence issued under section nineteen, twenty or twenty-one of the Prisons (Scotland) Act, 1952, or section fifty-seven of the Children and Young Persons (Scotland) Act, 1937”.

The Criminal Justice
(Scotland) Act, 1949.
12, 13 & 14 Geo. 6.
c. 94.

In section twenty-two, in subsection (1) for the words “this section” there shall be substituted the words “section twenty-three of the Prisons (Scotland) Act, 1952”.

The Courts Martial
(Appeals) Act, 1951.
14 & 15 Geo. 6. c. 46.

In section seventeen, for paragraph (e) there shall be substituted the following paragraph:—

(e) section thirty-five of the Prisons (Scotland) Act, 1952; or

FOURTH SCHEDULE

ENACTMENTS REPEALED

Section 43.

Session and Chapter	Short Title	Extent of Repeal
9 Geo. 4. c. 29	The Circuit Courts (Scotland) Act, 1828.	Section twenty-five and Schedule D.
23 & 24 Vict. c. 105.	The Prisons (Scotland) Act, 1860.	The whole Act.
26 & 27 Vict. c. 79.	The Prison Ministers Act, 1863.	The whole Act.
26 & 27 Vict. c. 109.	The Prisoners Removal (Scotland) Act, 1863.	The whole Act.
31 & 32 Vict. c. 95.	The Justiciary Court (Scotland) Act, 1868.	Section thirteen.
34 & 35 Vict. c. 112.	The Prevention of Crimes Act, 1871.	In section six, paragraphs (6) and (8); in paragraph (10) the words from “in Scotland” to “1860 and”; and in paragraph (12) the words from “The expenses incurred” to “accordingly”.
39 & 40 Vict. c. 23.	The Prevention of Crimes Amendment Act, 1876.	In section two the words “and photographing”.
40 & 41 Vict. c. 53.	The Prisons (Scotland) Act, 1877.	The whole Act except sections one and sixty-six.
54 & 55 Vict. c. 69.	The Penal Servitude Act, 1891.	Section eight.
4 Edw. 7. c. 35	The Prisons (Scotland) Act, 1904.	The whole Act.
3 & 4 Geo. 5. c. 4.	The Prisoners (Temporary Discharge for Ill-health) Act, 1913.	The whole Act.

4TH SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
16 & 17 Geo. 5. c. 57.	The Prisons (Scotland) Act, 1926.	The whole Act.
12, 13 & 14 Geo. 6. c. 94.	The Criminal Justice (Scotland) Act, 1949.	In section twenty, subsection (2). In section twenty-one, subsection (4). Section twenty-two except subsection (1). Section fifty except subsection (3). Section fifty-two except so far as relating to State Mental Hospitals. Sections fifty-three to sixty-two. Section sixty-six. In section seventy-four, subsection (2). The Fourth, Fifth, Sixth, Eighth and Ninth Schedules. The Eleventh Schedule so far as it amends the Prisons (Scotland) Act, 1877.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Lands Clauses Consolidation (Scotland) Act, 1845	8 & 9 Vict. c. 19.
Prevention of Crimes Act, 1871	34 & 35 Vict. c. 112.
Prisons (Scotland) Act, 1877	40 & 41 Vict. c. 53.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Mental Deficiency and Lunacy (Scotland) Act, 1913	3 & 4 Geo. 5. c. 38.
Police Pensions Act, 1921	11 & 12 Geo. 5. c. 31.
Criminal Appeal (Scotland) Act, 1926	16 & 17 Geo. 5. c. 15.
Firearms Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 12.
Children and Young Persons (Scotland) Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 37.
National Health Service (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 27.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.
Consolidation of Enactments (Procedure) Act, 1949	12, 13 & 14 Geo. 6. c. 33.
Criminal Justice (Scotland) Act, 1949	12, 13 & 14 Geo. 6. c. 94.
Courts-Martial (Appeals) Act, 1951	14 & 15 Geo. 6. c. 46.